

ARUN SANKAR/AFP

FREE AT LAST Perarivalan in Chennai after his release, May 18; below, in 1991

RAJIV ASSASSINATION CASE

HOW TO END A SENTENCE

By Amarnath K. Menon



On May 18, in one of his last orders before retiring, Supreme Court Justice L. Nageswara Rao invoked a rarely used power vested in the apex court under Article 142 of the Constitution to set free A.G. Perarivalan, one of the seven people convicted in the Rajiv Gandhi assassination case. The presiding judge, part of a bench that included Justice B.R. Gavai, said the order had taken into consideration the fact that Perarivalan had spent 29 of his 32 jail years in solitary confinement—among them 16 as a death row convict until the court commuted his sentence to life imprisonment in 2014 (citing interminable delays on his mercy petition plea).

The verdict has pointed to the failure of the governor of Tamil Nadu to do what is binding under Article 161 of the Constitution in following the advice of the state government (the AIADMK government had recommended release of the seven convicts in 2018). Perarivalan was accused of buying the two 9-volt Golden Power battery cells used by Sivarasan, the LTTE (Liberation Tigers of Tamil Eelam) mastermind behind the assassination, to power the detonator in the